Brecksville-Broadview Heights City School District

CONTRACT OF EMPLOYMENT

This Employment Contract ("Contract" or "Agreement") is entered into this 10th day of December 2025, by and between the Board of Education of the Brecksville-Broadview Heights City School District ("Board"), Cuyahoga County, Ohio, and Jeffrey Harrison, a person qualified by training, experience and certification/license to occupy the position of Superintendent in an Ohio public school district ("Harrison" or "Superintendent") pursuant to of Section 3319.01 of the Ohio Revised Code and in accordance with a resolution adopted by the Board at a meeting held on May 22, 2023.

WHEREAS, the Board desires to employ the Superintendent and the Superintendent desires to accept employment with the Board.

NOW THEREFORE, in consideration of the mutual promises contained herein, the Board and Superintendent agree as follows:

WITNESSETH:

1. Term of Contract

The Board hereby employs Jeffrey Harrison as Superintendent of the Brecksville-Broadview Heights City School District ("District") for a term beginning August 1, 2026, and ending the 31st day of July 2031, unless sooner terminated as provided herein. The Superintendent's contract year is a 12-month, 260-day contract, inclusive of Board-approved holidays.

2. Professional Certification

The Superintendent shall maintain and furnish to the Board evidence of his maintaining, throughout the life of this Contract, valid credentials to act as Superintendent for this District as provided by Section 3319.22 of the Revised Code.

3. Duties

The Superintendent shall perform the duties specified in the laws of the State of Ohio, Board Policy, the Job Description for the Superintendent as adopted by the Board, as it may be amended from time to time at the Board's sole discretion during the term of this Contract. In addition, the Superintendent shall perform such other duties as may be assigned by the Board during the term of this Contract.

The administration of instruction and business affairs will be lodged with the Superintendent and administered by him with the assistance of his staff. The responsibility for the recommendation, placement and transfer of personnel shall be vested in the Superintendent. The Board, individually and collectively, will refer complaints, concerns and suggestions called to its attention to the Superintendent, for study and recommendation. All duties are hereby incorporated in this Contract by reference as if fully restated herein.

4. Compensation

The Board, in consideration of the services to be rendered by the Superintendent, hereby agrees to pay him a base salary and fringe benefits as provided herein. Any adjustment of compensation made during the life of this Contract shall be in the form of an amendment and shall become part of this Contract. Said compensation will be payable in equal installments at the same time and in the same manner as all other full-time twelve (12) month administrative employees of the Board (unless provided herein otherwise) and shall not be less than the compensation paid during the preceding year of the Contract.

a. Salary

The Superintendent's base salary shall be maintained at the 2025-2026 rate – One Hundred Eighty-Two Thousand and Seventy Dollars ($182,070) – for both the first and second years of this Agreement. The Superintendent's base salary shall not increase until the third year of this Agreement; effective August 1, 2028, the base salary shall be increased three percent (3%), and the base salary shall increase that same amount each remaining year of this Agreement.

The Superintendent's salary shall not be reduced during the term of this Agreement except as part of a uniform district-wide reduction plan as provided by law. If any other adjustment in salary is made during the term of the Contract, all other provisions of this Contract, including its term ending date, shall remain as stated herein.

b. Fringe Benefits and Leaves

Except where this Contract expressly provides for a different fringe benefit or leave allocation, the Superintendent shall receive in addition to the above-stated base salary, such fringe benefits and leaves which are provided to other certificated employees in accordance with Board Policy and Administrative Personnel Guidelines as such may be amended from time to time (the "Policy and Guidelines"). The Policy and Guidelines, including any subsequent amendments thereto, are incorporated herein and made a part hereof.

c. FICA Contribution

The Board agrees to pay on behalf of the Superintendent, the full amount of the employee tax that, pursuant to Section 3101 of the Internal Revenue Code, is imposed upon all of the Medicare tax "wages" that are paid to the Superintendent pursuant to this Contract (currently 1.45% of salary). The Superintendent acknowledges and agrees that such payments may be reportable as additional taxable income of the Superintendent; and Board shall not be required to pay on behalf of, or to otherwise reimburse the Superintendent on account of, any such income tax consequences.

d. **Retirement Contribution**

The Board shall pay the employer's share of the State Teachers Retirement System (STRS) contributions as required by law. In addition, the Board shall "pick up" (pay directly) the employee's share of retirement contributions to the State Teachers Retirement System on behalf of Superintendent, at the rate in effect, plus all retirement contributions on this picked-up amount. It is the intention of the parties that this picked-up amount be included in the Superintendent's compensation for the purpose of calculating retirement benefits. It is also the intention of the parties that this pick-up, together with the contributions on the pick-up, be made with respect to all amounts paid under this Contract that are recognized as STRS as compensation for retirement purposes. In the event the Board is legally prohibited from making a retirement contribution on behalf of the Superintendent, the Board shall pay to the Superintendent the equivalent of the contribution and any additional amount due in taxes in the form of salary.

5. Annuity

At the end of each calendar month of employment under this Contract, the Board shall contribute on behalf of the Superintendent to an annuity contract or custodial account which is tax qualified under IRC §403(b) (an "Annuity") as selected by the Superintendent from a list of Providers that are available under the Section 403(b) Plan of the District, and/or from IRC Section 401(a) or IRC Section 457, or any combination of such plans, as determined by the Superintendent. The amount to be contributed to the Annuity for each month shall be equal to one twelfth (1/12) of eight and one-half percent (8.5%) of the base salary payable pursuant to Paragraph 4(a) above.

The annuity shall be the property of Superintendent both before and after separation from employment. The Superintendent acknowledges that for federal income tax purposes, the payments to the Annuity or other IRS tax-sheltered payments shall be treated as salary reduction contributions on behalf of the Superintendent. The Board agrees to fully cooperate with the Superintendent to implement tax-sheltering decisions by the Superintendent to the extent allowed under law consistent with the above. At the sole discretion of the Superintendent, any portion or all of this annuity amount can be taken as cash payment to be distributed in two (2) equal payments each contract year, or can be taken as compensation to be included in bi-weekly salary payments, so long as the total payments made under this Section to the Superintendent or to the annuity company do not exceed the total percentage amount allowed for the given year. The amounts paid to the Annuity and/or paid to the Superintendent shall be considered part of the base salary of the Superintendent for STRS and other purposes.

6. Vacation And Leaves

The Board will provide the Superintendent thirty-five (35) days paid vacation for each year of the Contract. Vacation time is to be arranged with the minimum disruption of the operation of the school system. Any unused vacation, at the conclusion of the year during the Contract, will be paid to the Superintendent, up to a maximum of five (5) days at the current daily rate. Any unused days not paid out under the contract terms may be carried over in accordance with the Administrative Guidelines.

In the event of termination of employment for whatever reason, the Superintendent shall be entitled to full compensation for any vacation days unused by the date of termination, up to a maximum of five (5) days. In the event of death, such shall be paid to the estate in accordance with Section 2113.04 of the Ohio Revised Code.

Paid sick leave days may be accumulated and utilized in accordance with regulations applicable to twelve-month administrative employees. The Superintendent is entitled to transfer all accrued but unused sick leave days from his previous employer, as of the date of his termination of employment with that employer.

7. **Professional Development**

The Board shall pay the cost of the Superintendent's membership in Buckeye Association of School Administrators (BASA), American Association of School Administrators (AASA) and Greater Cleveland School Superintendents' Association (GCSSA). Upon request of the Superintendent, the Board may also approve the cost of the Superintendent's membership in other professional organizations, provided they are educational in nature and/or relate to the performance by the Superintendent of his duties for the District and shall include, but not be limited to, community organizations. Additionally, the Superintendent shall be encouraged to attend professional meetings at the local, state, and national level as are approved by the Board, including the cost of attendance. "Cost of membership" and "cost of attendance" shall include, but not be limited to, dues, assessments, and reasonable expenses (including travel expenses) relating to membership in and attendance at meetings of the organization.

8. **Days to Be Worked**

The Superintendent's rate of pay shall be calculated on the basis of two hundred sixty (260) working days, inclusive of all holidays and vacation days. The Superintendent shall devote such time and energies as are necessary to perform the duties specified in the Job Description and this Agreement throughout its duration. These duties will be performed during the normal business hours of the Superintendent's Office, but it is expressly agreed that the duties of this position will require the Superintendent to work during times other than normal business hours and may require work exceeding forty hours per week, for which no additional compensation shall be paid.

9. ***Per Diem* Rate**

The *per diem* rate of pay calculations shall be consistent with the method used for all eligible District administrators in Section 1(B) of the Administrative Personnel Guidelines, and as may be amended from time to time during the term of this Agreement.

10. Expenses

The Board shall reimburse the Superintendent for all actual and necessary travel and other expenses required in the performance of his official duties during his employment under this Contract, subject to such procedures and limitations as provided by law and by Board policy.

11. Evaluation

The Board shall evaluate the Superintendent at least once each year in accordance with the Board-adopted Evaluation Procedure. The Board shall consider the Superintendent's evaluations in deciding whether to renew the Superintendent's Contract. Consistent with ORC 3391.01, the establishment of an Evaluation Procedure does not create an expectancy of continued employment nor prevent the Board from making a final determination regarding the renewal or nonrenewal of the Superintendent's Contract.

12. Indemnification

To the extent permitted by law, the Board agrees that it will defend and indemnify the Superintendent against all civil demands, claims, suits, actions and legal proceedings, whether threatened or instituted, brought against the Superintendent in his individual capacity, or in his official capacity as agent and employee of the Board, that arise from the acts or omission of the Superintendent while acting within the scope of his employment and in good faith belief that such conduct was lawful and in the best interests of the District. The Board’s expenditure and obligations under this provision shall not exceed the amount provided by insurance purchased by the Board or this purpose or the amount appropriated by the Board for this purpose, whichever is greater.

In the event the Board and the Superintendent are determined to have adverse interests in any proceedings, the Board shall have no duty of indemnification or defense provided that the board or agents of the Board have not acted in a manner contrary to law. In any event, the Board shall not be required to pay any cost of any legal proceedings in which the Board is asserting a claim against the Superintendent, or the Superintendent is asserting a claim against the Board. In no case will individual Board members be considered personally liable for indemnifying the Superintendent against any such demands, claims, suits, actions, or legal proceedings.

13. Extension

The Board may, by specific action, extend the termination date of the existing Contract; the extended Contract may not exceed a total of five (5) years. Failure to notify the Superintendent, in writing, no later than the first day of December of the year in which his Contract of Employment expires, of the Board's intent not to renew, the Contract will result in a one-year extension of the existing Contract.

14. Incapacity Clause

Upon the request of the Board, the Superintendent shall be required to obtain an annual physical examination by a doctor or doctors of his choice within the District's PPO network, the cost of which shall be fully paid by the Board to the extent not covered by insurance.

The Superintendent may be placed on sick leave or on leave of absence upon his incapacity, pursuant to Section 3319.011 of the Ohio Revised Code, according to the standard then in effect under Board Policy, or may be terminated upon his permanent incapacity, as provided below.

15. Contract Termination

This Employment Contract may be terminated by:

a. Mutual agreement of the Parties;

b. Retirement, disability, or death of the Superintendent;

c. Termination by the Board in accordance with ORC and 3319.16;

d. Termination for failure of the Superintendent to maintain a valid license under ORC 3319.22;

e. Violation of any of the terms of this Contract.

f. In addition, any of the following actions or inactions by Superintendent constitutes grounds for the Board to terminate the Superintendent:

   i. Material violation of Board Policies;

   ii. Conviction of a felony crime or other crime of moral turpitude or other crime involving dishonesty;

   iii. Incompetency;

   iv. Failure to follow the recommendations of an evaluation;

   v. As may be otherwise provided by law.

16. Severance Pay

If the Superintendent retires from STRS, the Superintendent shall receive such severance as is provided to other certificated employees in accordance with Board Policy and Administrative Personnel Guidelines as such may be amended from time to time (the "Policy and Guidelines"). Pursuant to and in accordance with the Administrative Personnel Guidelines, the Superintendent shall be treated as if his employment contract start date is on or earlier than August 1, 2021. The

Policy and Guidelines, including any subsequent amendments thereto, are incorporated herein and made a part hereof.

Notwithstanding the foregoing, if the Superintendent's separation is the result of termination pursuant to Section 3319.16 of the Revised Code, the Superintendent will not receive payment for any unused vacation days and will only be eligible for severance to the extent payment is required under ORC Section 124.39. If the employment of the Superintendent is terminated on account of death or the Superintendent dies after separation from employment but prior to receiving payment of his severance, payments shall be made to the estate of the Superintendent.

17. <u>Savings Clause</u>

If any portion of this Contract is deemed to be illegal due to a conflict with State or Federal law, the remainder of the Contract shall remain in full force and effect.

18. <u>Entire Agreement</u>

This Contract of Employment contains the entire agreement of the parties, and no modifications to this Contract may be made except in writing signed by the parties, following proper resolution of the Board.

IN WITNESS WHEREOF, the President of the Board of Education of the Brecksville-Broadview Heights City School District, having been duly authorized, and Jeffrey Harrison, Superintendent of the Brecksville-Broadview Heights City School District, have personally signed on the dates indicated below.

FOR THE EMPLOYEE:

____

Jeffrey Harrison Date

FOR THE BOARD OF EDUCATION OF THE
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT:

____

Board President Date

____

Treasurer Date

Board Approval Date: _________________________